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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**NEWS MEDIA’S OPPOSITION TO
DEFENDANT’S MOTION TO CLOSE
PORTIONS OF PRELIMINARY
HEARING AND SEAL EXHIBITS**

Case No. 251403576
Hon. Tony F. Graf, Jr.

Preferred Disposition

On May 1, 2026, Defendant Tyler Robinson asked the Court to “convene a closure hearing” before the preliminary hearing now scheduled for early July 2026 to do two things: (1) “to determine which portions of the State’s proposed testimony should be taken in closed session and thereafter sealed,” and (2) to determine “which of [the State’s] proposed exhibits should be sealed.” *See* Mot. in Limine to Close and Seal [Doc. 513] (“Motion” or “May 1, 2026 MIL”).

As the Court has repeatedly recognized, the public and news media enjoy a presumptive constitutional right of access to criminal proceedings. *See Richmond Newspapers v. Virginia*, 448 U.S. 55 (1980). That constitutional right applies in full force in this context: when the public seeks access to a preliminary hearing. *See Press-Enterprise Co. v. Superior Court*, 478 U.S. 1 (1986); *Kearns-Tribune v. Lewis*, 685 P.2d 515 (Utah 1984).

Defendant’s Motion fails to give appropriate weight to the public’s presumptive access rights and fails to provide any measure of specificity regarding what, exactly, it seeks to close, seal, or classify. The Court has correctly rejected (or carefully tailored) requests to close or seal aspects of this proceeding in the past, and Utah law requires the same result here.

The News Media asks that the Court deny Defendant’s Motion accordingly.

Argument

I. The Public and the News Media Enjoy a Presumptive Constitutional Right to Attend the Preliminary Hearing and to Access Pretrial Documents.

The Court has already received, reviewed, and applied briefing that details the applicable constitutional rights and outlines the governing standards. The News Media incorporates that briefing here, by reference,¹ and offers only a modest summary of that past briefing, for the Court’s convenience.

¹ *See, e.g.*, Mot. for Limited Intervention & Request for Notice, at 4–7 [Doc. 164]; Mot. for Limited Intervention [Doc. 197]; Mem. Opp. Stip. Mot. to Classify, at 3–7 [Doc. 220]; State’s Resp. to

The Utah Supreme Court has expressly recognized that the public has a presumptive right of access preliminary hearings, just as it does for criminal trials. *See Kearns-Tribune*, 685 P.2d at 512, 518–19; *cf. Press-Enterprise*, 478 U.S. at 11–13. As the United States Supreme Court noted in *Press-Enterprise*, the “tradition of accessibility to preliminary hearings” of this type dates back hundreds of years. *Press-Enterprise*, 478 U.S. at 11. In many cases, preliminary hearings “provide the sole occasion for public observation of the criminal justice system,” *id.* at 12 (cleaned up), and public access to preliminary hearings promotes the public good in a number of ways, *see id.* at 13. Those benefits flow both to those who attend those proceedings and to those who do not, as openness “enhances both the basic fairness of the criminal trial and the appearance of fairness so essential to public confidence in the system.” *Id.* (citation and internal quotation marks omitted).

As the Utah Supreme Court has explained, for the public to “exercise [its] sovereign power in an intelligent and responsible manner,” it “must have free speech and a free press and access to operations of the government.” *Kearns-Tribune*, 685 P.2d at 521. “In addition to kindling public misperception and eroding public confidence, closure of significant pretrial proceedings perpetuates general ignorance and cuts off public knowledge necessary to a full understanding of the criminal justice system.” *Id.* (quoting *State v. Williams*, 459 A.2d 641, 649 (N.J. 1983)). The stakes could not be higher: “Democracy blooms where the public is informed and stagnates where secrecy prevails.” *Id.* (quoting *Phoenix Newspapers Inc. v. Jennings*, 490 P.2d 563, 567 (Ariz. 1981)).

To justify closing a preliminary hearing, the proponent of closure (here, the Defendant) bears a “significant burden,” given that he “seeks to obtain an exception to the people’s right of access to [a] preliminary hearing.” *Id.* at 523. And to satisfy that burden, the party seeking closure must arrive with *evidence* in tow—both (1) “evidence relevant to the nature and extent of the adverse

Mot. to Close Portions of the Apr. 17, 2026 Evid. Hrg., at 2–5 [Doc. 448]; Mem. Opp. Mot. to Close Portions of Apr. 17, 2026 Evid. Hrg., at 2–5 [Doc. 451].

publicity that may be generated by the open pretrial proceeding, including any inferences as to its potential for prejudice against a fair trial,” and (2) “evidence relating to the availability, feasibility, and efficacy of alternative means of selecting jurors and conducting the trial to assure the integrity and impartiality of the jury.” *Id.* (cleaned up) (citing *Williams*, 459 A.2d at 565–57).

Closure requests also trigger procedural protections, including notice and an opportunity to be heard, and any order of closure must be supported “by suitable written findings.” *Id.* at 524. And with respect to “documents filed in connection with a criminal preliminary hearing,” Utah law recognizes the same “presumptive right of access” as it does for access to the hearing itself.² *See State v. Archuleta*, 857 P.2d 234, 239 (Utah 1993) (“[C]ontrary to the determination of the trial court, we conclude that there is a First Amendment presumptive right of access to documents filed in connection with a criminal preliminary hearing.”).³

With those principles in mind, Defendant has failed to meet the significant burden associated with extinguishing the public’s presumptive constitutional right of access to the preliminary hearing.

² Defendant cites *Archuleta* for the proposition that “the First Amendment provides no presumptive right of public access to exhibits used at a preliminary hearing.” Motion at 4 (quoting *Archuleta*, 857 P.2d at 242). To the extent Defendant suggests *Archuleta* was commenting on the right to attend preliminary hearings and observe the presentation of exhibits, that is incorrect. The *Archuleta* Court was considering a request to “inspect and copy the actual exhibits admitted into evidence at the preliminary hearing.” *Id.* at 241. It is within that context that the *Archuleta* Court recognized a “common law qualified right to copy trial exhibits” while declining to recognize a corresponding constitutional right. *Id.* at 241–42. But the *Archuleta* Court was not discussing the right to attend preliminary hearings and observe the presentation of evidence. Indeed, as discussed, there is a presumptive constitutional right to attend preliminary hearings. *Kearns-Tribune*, 685 P.2d at 520–21.

³ In *Archuleta*, the Utah Supreme Court concluded that courts may “seal documents if the public’s right of access is outweighed by competing interests.” *See* 857 P.2d at 240–41 (cleaned up). Today, a list of factors suitable for the Court’s consideration and the requirement that the Court consider all “reasonable alternatives to closure” appear in the Utah Code of Judicial Administration. *See* UCJA R. 4-202.04; *see also id.* R. 4-202 (providing factors).

II. Defendant Has Made No Meaningful Effort to Satisfy the Burden Associated with a Motion to Close or a Motion to Seal or Classify.

After referring the Court to *Kearns-Tribune* and *Archuleta* and offering commentary on those cases, Defendant offers several paragraphs of argument regarding closure and sealing. After assuring the Court that it has “been apprised of much of the State’s intentions” at a prior hearing and in related pleadings, Defendant suggests that it is “very likely” that at least *some* portions of the testimony offered at the preliminary hearing would be inadmissible. *See* May 1, 2026 MIL, at 5. “By way of example,” Defendant continues, providing witness statements or offering expert reports without calling the declarants or authors as witnesses may be objectionable on hearsay grounds. And one expert report, Defendant says, “very well may be the precise type of report^[4] deemed appropriate for sealing in *Archuleta*.” *Id.*

Defendant then closes by arguing:

Additionally, the State intends to present as exhibits numerous videos which clearly cannot become public in advance of trial, given the well-established quantum of highly inflammatory media and social media coverage of this case, without further impairing Mr. Robinson’s constitutional right to a fair trial.

See id. at 6.

Defendant offers nothing more than that. In justifying that failure to offer any measure of specificity with respect to any witness or exhibit, Defendant points to “the tentative nature of the State’s witness and exhibit lists,” even though those lists were disclosed to Defendant a month before its May 1 filing. *See id.* But that witness and exhibit list was formally filed on May 6, 2026, *see* State’s Witness & Exhibit List [Doc. 523], and those lists closely track the information

⁴ Here, Defendant appears to be referring to a report from a medical examiner. In *Archuleta*, the “tangible exhibits” at issue included an “autopsy report, photographs of the victim’s body prepared by the medical examiner, fluid, tissue, and hair samples and bone fragments taken from the victim, various instruments used to torture and kill the victim, defendants’ and the victim’s bloody clothing, and fingerprints taken at the crime scene. *See Archuleta*, 857 P.2d at 241.

provided to the Defendant as early as April 3, 2026, *see id.* at 4–6 (attachment showing Apr. 3, 2026 letter).

Defendant’s failure to make specific arguments regarding closure and sealing cannot be excused. As the State noted in its Objection to Defendant’s Motion, that Motion “does not identify ‘with particularity’ the specific portions of the preliminary hearing that he believes should be closed or the particular exhibits he believes should be sealed,” nor does he offer any explanation as to “how failure to take those measures with respect to any particular piece of evidence will prejudice his right to a fair trial.” *See* State’s Obj. to May 1, 2026 MIL, at 4 [Doc. 532].

Examining the lists themselves will aid the Court’s analysis here. In its Witness and Exhibit List, the State identifies six witnesses (one of whom is a police officer, and four of whom are SBI agents) and thirty-four exhibits. Those exhibits include drone footage of the UVU campus, various photos (a screwdriver, a rifle, rifle rounds, a sniper perch, a note, press-release photographs), videos of the shooting, surveillance video, text messages and discord chats, a half-dozen written or recorded statements, a medical-examiner report, and five expert reports. *See id.*

Though Defendant’s failure to engage with specific testimony or exhibits makes it difficult to meaningfully respond to his Motion, Defendant’s arguments fail for familiar reasons. First, much, if not all, of the evidence and testimony at issue is already public. In argument regarding the timing of the preliminary hearing, the State has already previewed the categories of evidence and individualized exhibits that it intends to offer at that hearing. Much of that evidence was identified much earlier, including in the publicly filed case-initiating documents, including the Information and Probable Cause Affidavit. *See* Information [Doc. 1] (probable cause statement providing details regarding all of the categories of information at issue); Probable Cause Affidavit [Doc. 2]. Other evidence has already been openly discussed in arguments or filings in this case. *See, e.g.,* Redacted Mot. to Exclude Cameras, at 2–48 [Doc. 468]; Mot. re: Testing of Certain

Evidence [Doc. 284]. This fact, standing alone, justifies denying Defendant’s Motion. *See* Rulings & Order on Classification & Closure Mots., at 3 [Doc. 464] (concluding that because the information at issue is “already contained in the public arena, interests favoring closure are ‘greatly diminished’” (citing *State v. Allgier*, 2011 UT 47, ¶ 17, 258 P.3d 589)).

With respect to the loosely contoured arguments regarding hearsay testimony being admitted under Rule 1102, that dispute can—and should—be resolved in briefing and argument between Defendant and the State, not through an order barring the public from the courtroom or locking away exhibits on which the State relies. Defendant is free to make (and *has* made) arguments regarding what evidence may be used at the preliminary hearing. *See* Mot. in Limine to Preclude the Utilization of Hearsay Evidence (Doc. 525). But as Defendant recognizes, those arguments have been considered and rejected by the Utah Supreme Court. *Id.* at 3–4. What’s more, Defendant offers no support for the idea that evidence can be deemed prejudicial enough to justify withdrawing the public’s presumptive constitutional right of access simply because it may be eventually found inadmissible at trial. *Cf.* Rulings & Order on Classification & Closure Mots., at 3 [Doc. 464] (denying a sealing request for evidence in a technical report, finding that the filing at issue “does not contain any obvious private or inflammatory information” and that “while the evidence has not been admitted at trial, there is no pending motion to exclude it”).

Defendant’s Motion also makes no attempt to shoulder the second evidentiary burden required under *Kearns-Tribune*: a showing that there are no less restrictive alternative means to protect the fair-trial rights at issue. *See Kearns-Tribune*, 685 P.2d at 523. As this Court pointed out in a prior denial of a motion to seal filings, “even in highly publicized cases, a defendant’s right to a fair trial can be protected ‘through the regular, time-honored processes for selecting jurors’ like enlarging the venire of potential jurors, utilizing a detailed juror questionnaire, and conducting a thorough voir dire of potential jurors.” *See* Rulings & Order on Classification & Closure Mots., at

3 [Doc. 464] (quoting *Allgier*, 2011 UT 47, ¶ 19).⁵ Defendant’s failure to even attempt to satisfy that second burden serves as a second, stand-alone basis for denying his Motion.

Just as importantly, Defendants’ failure to engage with specific testimony or evidence is disqualifying. As this Court has observed, in making its determination on a closure or sealing request, “a court must make findings and conclusions about *specific court records*; identify and balance the interests favoring opening and closing the record and, if the record is ordered closed, ‘determine there are no reasonable alternatives to closure sufficient to protect the interests favoring closure.’” *See id.* at 2 (citing UCJA 4-202.04(6)). (Though that rule relates specifically to classifying court *records*, the requirements for closing a hearing closely parallel that rule. *See Kearns-Tribune*, 685 P.2d at 523–24.)

When, in past filings, Defendant has failed to “provide any specificity explaining why the potential evidence discussed . . . is of such a nature that its disclosure could taint the jury pool,” this Court has rightfully denied the classification request. *See Rulings & Order on Classification & Closure Mots.*, at 2 [Doc. 464]. Defendant’s failings in that respect are even more pronounced

⁵ Experience shows that in practice, arguments that potential jurors have seen or read allegedly prejudicial coverage about a case are overblown. *See, e.g., State v. Bishop*, 753 P.2d 439, 459 (Utah 1988) (“Defendant also claims that potential jurors had read a prejudicial news article which appeared in the paper the morning of jury selection. However, only six panel members reported that they had read part or all of the article or seen the headline thereof.”). And when potential jurors *do* read case-related coverage months or years before trial, they often quickly forget the details. *See, e.g., State v. Aase*, 762 P.2d 1113, 1116 (Utah Ct. App. 1988) (“[T]he jurors were specifically questioned regarding their exposure to publicity regarding the case. Those who had been exposed to such information unequivocally stated that they believed they could be fair and impartial. None of the jurors indicated that they remembered or were exposed to the specific adverse information in the newspaper articles attached to [defendant’s] motion for change of venue.”). Again, if potential jurors *have* been exposed to potentially prejudicial information, Utah has long recognized “reasonable and sufficient alternatives” to protecting a defendant’s fair-trial rights, including expanded jury pools, enhanced *voir dire*, and meaningful jury questionnaires. *See Allgier*, 2011 UT 47, ¶¶ 19–20. Those alternatives to closure remain available here, and Robinson’s Motion makes no argument that those alternatives are not reasonable and sufficient to protect his fair-trial rights in this proceeding. *Cf. id.* ¶ 20.

here, and his general request that the Court agree to close *some unspecified stretches* of testimony and seal *some unspecified sets* of exhibits should be denied accordingly.

Conclusion

This Court has long tracked the governing principle that must guide disputes like this one: “Members of the news media, like members of the public, have the constitutional right to access criminal proceedings.” *See* Order on Mot. to Exclude Cameras, at 4 (Doc. 535) (citing *Nixon v. Warner Commc’ns, Inc.*, 435 U.S. 589 (1978)). Because the First Amendment provides a right of meaningful access, courts are “obligated to take every reasonable measure to accommodate public attendance” at proceedings like this one. *Presley v. Georgia*, 558 U.S. 209, 215 (2010).

Preliminary hearings are counted among the group of criminal proceedings for which the public’s presumptive right of access is expressly recognized. *See Kearns-Tribune*, 685 P.2d at 518–19; *cf. Press-Enterprise*, 478 U.S. at 11–13. Absent a compelling showing from the party seeking closure or classification, that presumption should be recognized and honored. Based on the information that has already been made public and on the obvious narrower alternatives to closure or sealing—including careful jury selection—Defendant’s Motion should be denied even if the lack of specificity in his briefing were excused. But that lack of specificity should not be ignored, because it makes it impossible for the Court to grant him the relief he now seeks: to carry his significant burden here, Defendant must make a specific showing, one segment of testimony and one exhibit at a time, that the interests favoring closure outweigh the interests favoring access.

Defendant’s Motion does not meet that burden. The News Media asks the Court to deny Defendant’s Motion accordingly.

Respectfully submitted: May 15, 2026.

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Word-Count Certification

I hereby certify that this filing complies with the applicable word limit provided by Rule 7(q) of the Utah Rules of Civil Procedure, after excluding the portions identified in Rule 7(q)(2), as follows:

Type of filing:	Memoranda Opposing All Other Motions
Word limit:	5,400
Words in this filing:	2,893

Certificate of Service

I hereby certify that on May 15, 2026, I electronically filed the foregoing with the Court using the electronic filing system, which sent notification of such filing to all attorneys of record.

/s/ C. Michael Judd